

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 741

Introduced by McKinney, 11.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to government; to amend section 20-506,
- 2 Reissue Revised Statutes of Nebraska, and section 43-4202, Revised
- 3 Statutes Cumulative Supplement, 2024; to change the membership of
- 4 the Racial Profiling Advisory Committee and the Nebraska Children's
- 5 Commission; and to repeal the original sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 20-506, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 20-506 (1) The Racial Profiling Advisory Committee is created.

4 (2)(a) The committee shall consist of:

5 (i) The executive director of the Nebraska Commission on Law
6 Enforcement and Criminal Justice, who also shall be the chairperson of
7 the committee;

8 (ii) The Superintendent of Law Enforcement and Public Safety or his
9 or her designee;

10 (iii) The director of the Commission on Latino-Americans or his or
11 her designee; ~~and~~

12 (iv) The executive director of the Commission on Indian Affairs or
13 his or her designee; and -

14 (v) The chairperson of the Commission on African American Affairs or
15 his or her designee.

16 (b) The committee shall also consist of the following persons, each
17 appointed by the Governor from a list of five names submitted to the
18 Governor for each position:

19 (i) A representative of the Fraternal Order of Police;

20 (ii) A representative of the Nebraska County Sheriffs Association;

21 (iii) A representative of the Police Officers Association of
22 Nebraska;

23 (iv) A representative of the American Civil Liberties Union of
24 Nebraska;

25 (v) A representative of the AFL-CIO;

26 (vi) A representative of the Police Chiefs Association of Nebraska;

27 (vii) A representative of the Nebraska branches of the National
28 Association for the Advancement of Colored People; and

29 (viii) A representative of the Nebraska State Bar Association
30 appointed by the Governor from a list of attorneys submitted by the
31 executive council of the Nebraska State Bar Association.

1 (3) The committee shall meet and organize within thirty days after
2 the appointment of the members. The committee shall meet semiannually at
3 a time and place to be fixed by the committee. Special meetings may be
4 called by the chairperson or at the request of two or more members of the
5 committee.

6 (4) The committee shall advise the commission and its executive
7 director in the conduct of their duties regarding (a) the completeness
8 and acceptability of written racial profiling prevention policies
9 submitted by individual law enforcement agencies as required by
10 subsection (1) of section 20-504, (b) the collection of data by law
11 enforcement agencies, any needed additional data, and any needed
12 additional analysis, investigation, or inquiry as to the data provided
13 pursuant to subsection (3) of section 20-504, (c) the review, analysis,
14 inquiry, study, and recommendations required pursuant to subsection (7)
15 of section 20-504, including an analysis of the review, analysis,
16 inquiry, study, and recommendations, and (d) policy recommendations with
17 respect to the prevention of racial profiling and the need, if any, for
18 enforcement by the Department of Justice of the prohibitions found in
19 section 20-502.

20 **Sec. 2.** Section 43-4202, Revised Statutes Cumulative Supplement,
21 2024, is amended to read:

22 43-4202 (1) The Nebraska Children's Commission is created as a high-
23 level leadership body to monitor and evaluate the child welfare and
24 juvenile justice systems. The commission shall provide a permanent forum
25 for collaboration among state, local, community, public, and private
26 stakeholders in child welfare and juvenile justice programs and services.

27 (2)(a) The Governor shall appoint fifteen voting members. The
28 members appointed pursuant to this subdivision shall represent
29 stakeholders in the child welfare and juvenile justice systems and shall
30 include: (i) A biological parent currently or previously involved in the
31 child welfare system or juvenile justice system; (ii) a young adult

1 previously in foster care; and (iii) a representative of a federally
2 recognized Indian tribe residing within the State of Nebraska and
3 appointed from a list of three nominees submitted by the Commission on
4 Indian Affairs; and (iv) one individual from a list of three nominees
5 submitted by the Commission on African American Affairs.

6 (b) The Nebraska Children's Commission shall have the following
7 nonvoting, ex officio members: (i) The chairperson of the Health and
8 Human Services Committee of the Legislature or a committee member
9 designated by the chairperson; (ii) the chairperson of the Judiciary
10 Committee of the Legislature or a committee member designated by the
11 chairperson; (iii) the chairperson of the Appropriations Committee of the
12 Legislature or a committee member designated by the chairperson; (iv)
13 three persons appointed by the State Court Administrator; (v) the
14 executive director of the Foster Care Review Office; (vi) the Director of
15 Children and Family Services of the Division of Children and Family
16 Services of the Department of Health and Human Services or his or her
17 designee; (vii) the Director of Behavioral Health of the Division of
18 Behavioral Health of the Department of Health and Human Services or his
19 or her designee; (viii) the Commissioner of Education or his or her
20 designee; and (ix) the Inspector General of Nebraska Child Welfare.

21 (3) The nonvoting members may attend commission meetings and
22 participate in the discussions of the commission, provide information to
23 the commission on the policies, programs, and processes within their
24 areas of expertise, and gather information for the commission. The
25 commission may hire staff to carry out the responsibilities of the
26 commission.

27 (4) For administrative purposes, the offices of the staff of the
28 commission shall be located in the Foster Care Review Office. The
29 commission may hire a consultant with experience in facilitating
30 strategic planning to provide neutral, independent assistance in updating
31 the statewide strategic plan.

1 (5) The commission, with assistance from the executive director of
2 the Foster Care Review Office, shall employ a policy analyst to provide
3 research and expertise to the commission relating to the child welfare
4 system. The policy analyst shall work in conjunction with the staff of
5 the commission. His or her responsibilities may include, but are not
6 limited to: (a) Monitoring the Nebraska child welfare system and juvenile
7 justice system to provide information to the commission; (b) analyzing
8 child welfare and juvenile justice public policy through research and
9 literature reviews and drafting policy reports when requested; (c)
10 managing or leading projects or tasks and providing resource support to
11 commission members and committees as determined by the chairperson of the
12 commission; (d) serving as liaison among child welfare and juvenile
13 justice stakeholders and the public and responding to information
14 inquiries as required; and (e) other duties as assigned by the
15 commission.

16 (6) Members of the commission shall be reimbursed for expenses as
17 members of such commission as provided in sections 81-1174 to 81-1177. No
18 member of the commission shall have any private financial interest,
19 profit, or benefit from any work of the commission.

20 (7) It is the intent of the Legislature to fund the operations of
21 the commission using the Nebraska Health Care Cash Fund for fiscal years
22 2019-20 and 2020-21.

23 **Sec. 3.** Original section 20-506, Reissue Revised Statutes of
24 Nebraska, and section 43-4202, Revised Statutes Cumulative Supplement,
25 2024, are repealed.